



PHASE 05 · GAP-FILL STRATEGY

Gap-Fill / Enhancement Strategy

Every gap with copy-paste wording, exact location, risk, priority and status

Wordings reviewed

- TMHCC final wording (commit 58b8340) vs six competitors

Updated from the refreshed six-insurer legal review (Phase 03), incl. the abuse/Tysers item.

Purpose: make TMHCC more holistic and demonstrably market-leading where commercially sensible — not to copy competitors blindly.

Where TMHCC should NOT follow a competitor (e.g. patents), the reason is stated.

Priority summary

#	Gap / enhancement	Mode	Priority	Status
1	Abuse / Molestation — optional sub-limited write-back	Optional / Schedule-selectable	High	PARKED
2	Worldwide / USA-Canada territory option (Media Liability)	Optional / Schedule-selectable	High	IMPLEMENTED as tracked change (B5)
3	Distributors & Purchasers extension (Media Liability)	Optional	Medium	IMPLEMENTED as tracked change (B1)
4	Representation costs at investigations / inquiries (Media Liability)	Automatic (sub-limited)	Medium	IMPLEMENTED as tracked change (B2)
5	Journalistic source-protection costs (Media Liability)	Optional / Schedule sub-limit	Medium	IMPLEMENTED as tracked change (B3)
6	Criminal / regulatory defence-costs cross-reference (Media Liability)	Automatic (cross-reference + sub-limit)	Medium-High	IMPLEMENTED as tracked change (B4)
7	King's Counsel dispute-resolution clause (Media Liability)	Automatic	Low-Medium	IMPLEMENTED as tracked change (B6)
8	Pollution negligent-advice write-back (Media Liability PI)	Automatic (narrow, sub-limited)	Medium	IMPLEMENTED as tracked change (B7)
9	Money restructure — Premises + Touring/Festivals/Events (Section 8)	Schedule-selectable (two sub-limits)	Medium	IMPLEMENTED as tracked change (A4)
10	Proof of Ownership and Value — claims condition (Sections 1-11)	Automatic (claims condition)	Medium	IMPLEMENTED as tracked change
11	Broaden S13 'Employee' & align S12 'Computer System' definitions	Automatic (definition)	Medium	IMPLEMENTED as tracked change (A5/A6)
12	Personal Accident & Business Travel section	Optional (new section)	High	PARKED
13	Asbestos negligent-advice write-back (PI) — consider	Optional (if adopted)	Medium	PARKED
14	Patents — LEAVE EXCLUDED (no action)	n/a	Low	NO ACTION
15	ICOW / Book Debts naming + computer-breakdown signpost	Automatic (labelling/clarification)	Low-Medium	PARTLY DONE (Book Debts relabel) / clarify breakdown signpost

Detailed gap-fill recommendations

1. Abuse / Molestation — optional sub-limited write-back

Field	Detail
Competitor(s) broader/better	Tysers, Liberty, Allianz, Entertainment Elite (no express abuse exclusion — silent)
TMHCC current position	Public Liability EXPRESSLY EXCLUDES abuse (intentional/neglectful mistreatment; Sexual Offences Act 2003).
Why this matters	Tysers — the closest media competitor — and three other competitors do not carve out abuse, so TMHCC looks narrower on this peril. Abuse is, however, high-severity, long-tail and reputational; an outright exclusion is a defensible default.
Recommended action	KEEP the exclusion as default; OFFER an optional, sub-limited, Schedule-operative abuse/molestation write-back with safeguarding conditions precedent for client segments with genuine exposure (festivals/youth/community events).
Exact policy location	Section 6 (Public Liability) — Exclusions: add as an 'Optional Extension' disapplying the Abuse exclusion when operative.
Automatic / optional / schedule	Optional / Schedule-selectable
Underwriting risk	HIGH — severe, long-tail, reputational; reinsurance-sensitive.
Claims risk	High severity / low frequency; coverage litigation likely.
Priority	High
Sign-off required	YES — claims + legal + reinsurance; consider directing the core exposure to a specialist abuse market.
Status	PARKED — proposed wording for consideration (not in current wording)

Copy-paste-ready proposed wording: Optional Abuse and Molestation Extension (operative only if stated in the Schedule): The Abuse exclusion under this Section shall not apply, and the Insurer will indemnify the Insured for Bodily Injury arising from the actual or alleged abuse or molestation of any person, up to the sub-limit and in the aggregate stated in the Schedule, PROVIDED THAT: (a) cover applies on a claims-made basis to claims first made and notified during the Period of Insurance; (b) it is a condition precedent that the Insured maintains a documented safeguarding policy and, where required, obtains and records satisfactory DBS/PVG (or equivalent) checks for all persons working with children or vulnerable adults, and applies appropriate supervision arrangements; (c) no indemnity applies to any person who committed, condoned or, after becoming aware of it, failed to take reasonable steps to prevent the abuse; (d) the Self-Insured Retention stated in the Schedule applies; and (e) fines, penalties and punitive/exemplary damages are excluded save where insurable by law.

2. Worldwide / USA-Canada territory option (Media Liability)

Field	Detail
Competitor(s) broader/better	Tysers (PI worldwide)
TMHCC current position	S12 limited to Schedule Geographical Limits; excludes actions brought/governed outside the stated Jurisdiction (default ex-US/Canada).
Why this matters	Media clients with global digital distribution can face actions outside the default jurisdiction; TMHCC looks narrower on the matrix.
Recommended action	Add an OPTIONAL worldwide (and separately, USA/Canada) write-back to the Geographical Limits / Legal-Action exclusion, rated accordingly.
Exact policy location	Section 12 (Media Liability) — new Optional Extension after 'Distributors and Purchasers'.
Automatic / optional / schedule	Optional / Schedule-selectable

Underwriting risk	HIGH if US/Canada operative — price/sub-limit/higher excess; retain ex-US/Canada default.
Claims risk	Higher in US/Canada (costs, punitive). Control via defence-cost caps and consent.
Priority	High
Sign-off required	YES (S12) — confirm reinsurance treaty territory before offering US/Canada.
Status	IMPLEMENTED as tracked change (B5) — awaiting UW sign-off

Copy-paste-ready proposed wording: Worldwide Territory and Jurisdiction (Optional) — applies only if stated operative in the Schedule. Where operative, the Geographical Limits are amended to anywhere in the world and the Jurisdiction to worldwide, and the exclusions of claims brought, or in which the governing law is contended to be, outside the Jurisdiction shall not apply. Cover for claims brought in, or determined under the laws of, the USA or Canada (or any territory/protectorate thereof) applies only if 'USA/Canada Jurisdiction' is ADDITIONALLY stated operative.

3. Distributors & Purchasers extension (Media Liability)

Field	Detail
Competitor(s) broader/better	Tysers (clause 8.7, up to 5x limit)
TMHCC current position	No equivalent extension.
Why this matters	Production/distribution clients expect their distribution chain to be protected.
Recommended action	Add an optional Distributors & Purchasers extension, capped at a multiple of the limit, with control-of-defence and notice conditions.
Exact policy location	Section 12 (Media Liability) — new Extension after 'Indemnity to Principals'.
Automatic / optional / schedule	Optional
Underwriting risk	Medium — control via claim window, certificate, control-of-defence (mirror Tysers).
Claims risk	Medium; aggregate multiple must be capped.
Priority	Medium
Sign-off required	YES (S12) — confirm acceptable aggregate multiple.
Status	IMPLEMENTED as tracked change (B1) — awaiting UW sign-off

Copy-paste-ready proposed wording: The indemnity provided by Insuring Clause 1. (Indemnity) is extended to apply to any purchaser, co-producer, licensee or distributor of Media Material produced or supplied by the Insured, but only in respect of claims arising from such Media Material and only where the Insured is contractually obliged to provide such indemnity. The Insurer's total liability under this Extension shall not exceed five (5) times the Indemnity Limit in the aggregate during the Period of Insurance for all claims arising from each production. Cover is conditional upon the Insurer retaining the right to conduct the defence and settlement of any such claim, and upon any claim being first made against, and notified to, the Insurer during the Period of Insurance.

4. Representation costs at investigations / inquiries (Media Liability)

Field	Detail
Competitor(s) broader/better	Tysers (clause 8.15, GBP 25k)
TMHCC current position	Provided only via Data-Protection defence; otherwise absent.
Why this matters	Regulators increasingly investigate content/advertising (ASA/CMA/Ofcom).
Recommended action	Add a sub-limited representation-costs extension (GBP 25k).
Exact policy location	Section 12 (Media Liability) — new extension after the IP-pursuit clause.
Automatic / optional / schedule	Automatic (sub-limited)

Underwriting risk	Low — small sub-limit.
Claims risk	Low.
Priority	Medium
Sign-off required	YES (S12) — confirm sub-limit and consent mechanics.
Status	IMPLEMENTED as tracked change (B2) — awaiting UW sign-off

Copy-paste-ready proposed wording: Up to a maximum of GBP 25,000 in the aggregate in the Period of Insurance, for the reasonable costs and expenses incurred by the Insured, with the Insurer's prior written consent, in respect of attendance at or representation before any official examination, investigation, inquiry or other proceeding arising from the Insured's Media Business Services and likely to give rise to a claim under Insuring Clause 1. This cover forms part of and does not increase the Indemnity Limit.

5. Journalistic source-protection costs (Media Liability)

Field	Detail
Competitor(s) broader/better	Tysers (clause 8.13)
TMHCC current position	Not provided.
Why this matters	Broker-sensitive for editorial, news and publishing clients.
Recommended action	Add a sub-limited source-protection costs extension (consent; counsel reasonable-prospects test).
Exact policy location	Section 12 (Media Liability) — new extension following Representation Costs.
Automatic / optional / schedule	Optional / Schedule sub-limit
Underwriting risk	Low — low-frequency; consent + counsel test.
Claims risk	Low frequency.
Priority	Medium
Sign-off required	YES (S12) — confirm sub-limit.
Status	IMPLEMENTED as tracked change (B3) — awaiting UW sign-off

Copy-paste-ready proposed wording: Up to the sub-limit stated in the Schedule, with the Insurer's prior written consent, for the reasonable legal costs of opposing or responding to any subpoena, court order or other legal compulsion requiring the Insured to disclose the identity of a confidential journalistic source, where such disclosure arises from the Insured's Media Business Services, and only where, in the opinion of counsel, there are reasonable grounds to oppose disclosure. This cover forms part of and does not increase the Indemnity Limit.

6. Criminal / regulatory defence-costs cross-reference (Media Liability)

Field	Detail
Competitor(s) broader/better	Tysers (statutory defence GBP 1m); Yutree (criminal-prosecution defence GBP 250k)
TMHCC current position	S12 funds only Data-Protection defence (GBP 250k); broader criminal/regulatory defence sits in S13/S14.
Why this matters	On a section-by-section read of S12 alone, TMHCC looks narrower.
Recommended action	Add an express cross-reference to S13/S14 plus a modest sub-limited contribution (excess of S13/S14), excluding fines.
Exact policy location	Section 12 (Media Liability) — new clause following Source-Protection costs.
Automatic / optional / schedule	Automatic (cross-reference + sub-limit)
Underwriting risk	Low-medium — largely clarifying.
Claims risk	Low.
Priority	Medium-High

Phase 05 — gap-fill strategy. Copy-paste wording is PROPOSED and subject to TMHCC legal/underwriting sign-off. 'Implemented as tracked change' = present in the Full Redline but NOT accepted.

Sign-off required	YES (S12) — confirm interaction with S13/S14.
Status	IMPLEMENTED as tracked change (B4) — awaiting UW sign-off
Copy-paste-ready proposed wording: In addition to the Data Protection Defence Costs provided above, the Insured is reminded that defence of criminal and regulatory proceedings may also be available under Section 13 (Commercial Legal Expenses) and Section 14 (Management Liability). The Insurer will further contribute, up to the sub-limit stated in the Schedule and with prior written consent, towards the reasonable defence costs of any criminal or regulatory proceeding arising directly from the Insured's Media Business Services, save to the extent covered under S13 or S14. This cover forms part of and does not increase the Indemnity Limit and excludes fines, penalties and costs incurred after a plea or finding of guilt.	

7. King's Counsel dispute-resolution clause (Media Liability)

Field	Detail
Competitor(s) broader/better	Yutree (KC clause)
TMHCC current position	Relies on a general mediation/dispute condition.
Why this matters	Drafting-clarity opportunity; reduces coverage friction on defence/settlement disputes.
Recommended action	Add a King's Counsel-determination clause to S12 defence/settlement provisions.
Exact policy location	Section 12 (Media Liability) — new clause after the dispute/mediation provision.
Automatic / optional / schedule	Automatic
Underwriting risk	Low — procedural.
Claims risk	Reduces dispute cost.
Priority	Low-Medium
Sign-off required	YES (S12) — confirm cost-allocation wording.
Status	IMPLEMENTED as tracked change (B6) — awaiting UW sign-off
Copy-paste-ready proposed wording: In respect of Section 12 only, if the Insured and the Insurer disagree as to whether or how any claim should be defended, settled or pursued, either party may require the matter to be referred to a King's Counsel of the English Bar (mutually agreed, or failing agreement within 14 working days, appointed by the Chairman of the Bar Council). The opinion of such King's Counsel as to the conduct of the matter shall be binding on both parties, having regard to the interests of both, and the costs of the reference shall be allocated on a fair and equitable basis.	

8. Pollution negligent-advice write-back (Media Liability PI)

Field	Detail
Competitor(s) broader/better	Yutree (pollution write-back for own negligence)
TMHCC current position	S12 excludes seepage/pollution/contamination outright.
Why this matters	Genuine E&O exposures (negligent advice/specification) fall in the exclusion gap.
Recommended action	Add a narrow, sub-limited write-back limited to negligent advice, expressly excluding BI, property damage and clean-up.
Exact policy location	Section 12 (Media Liability) — proviso to the Seepage & Pollution exclusion.
Automatic / optional / schedule	Automatic (narrow, sub-limited)
Underwriting risk	Medium — must keep BI/contamination excluded; cap tightly.
Claims risk	Medium; cap tightly.
Priority	Medium
Sign-off required	YES (S12) — careful legal drafting review essential.
Status	IMPLEMENTED as tracked change (B7) — awaiting UW sign-off

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Copy-paste-ready proposed wording: provided that this Exclusion shall not apply to any claim arising solely from a negligent act, error or omission in the provision of the Insured's Media Business Services (and not from any seepage, Pollution or contamination caused by the Insured's own operations, premises or activities), and provided further that this write-back shall not extend to any claim for Bodily Injury, property damage, or the costs of removing, nullifying, cleaning up or remediating any pollutant. The Insurer's liability under this write-back shall not exceed the sub-limit stated in the Schedule against this write-back.

9. Money restructure — Premises + Touring/Festivals/Events (Section 8)

Field	Detail
Competitor(s) broader/better	Entertainment Elite (event-money); 0523 'Venue'
TMHCC current position	Single Money section.
Why this matters	Touring/festival/event money exposure not clearly addressed.
Recommended action	Restructure Money into two Schedule-referenced extensions, preserving existing covers/exclusions.
Exact policy location	Section 8 (Money) — new extensions after 'Loss of Keys'.
Automatic / optional / schedule	Schedule-selectable (two sub-limits)
Underwriting risk	Medium — dishonesty/assault heads; Schedule sub-limits.
Claims risk	Medium.
Priority	Medium
Sign-off required	YES — underwriting to set sub-limits.
Status	IMPLEMENTED as tracked change (A4) — awaiting UW sign-off

Copy-paste-ready proposed wording: Money – Premises: extends cover to Damage to Money at the Premises up to the Schedule sub-limit. Money – Touring, Festivals and Events: extends cover to Money in transit/temporary storage/safe/custody at any venue, festival site, box office or touring/event location, including (a) damage to safes/containers/money belts; (b) damage to clothing, personal effects and personal Money following assault/violence; and (c) employee dishonesty discovered within 12 months. Both are subject to the Schedule sub-limit and do not reduce existing Money cover. (Full text in the Full Redline, Section 8.)

10. Proof of Ownership and Value — claims condition (Sections 1–11)

Field	Detail
Competitor(s) broader/better	Tysers, Entertainment Elite (Money security/proof conditions)
TMHCC current position	No express proof-of-ownership condition.
Why this matters	Claims-handling hygiene for theft/property/equipment claims; reduces disputed-value claims.
Recommended action	Add a Proof of Ownership and Value claims condition.
Exact policy location	Policy Claims Conditions (S1–11) — between 'Notification to the Police' and 'Terms of Settlement'.
Automatic / optional / schedule	Automatic (claims condition)
Underwriting risk	Low-medium — confirm ordinary condition (not CP).
Claims risk	Reduces disputed-value claims.
Priority	Medium
Sign-off required	YES — confirm status (ordinary condition vs CP).
Status	IMPLEMENTED as tracked change — awaiting UW sign-off

Copy-paste-ready proposed wording: Proof of Ownership and Value — The Insured shall, at the request of the Insurer, produce reasonable documentary proof of ownership and of the value of any property the subject of a claim (for example purchase invoices, receipts, valuations, asset registers, hire agreements or photographs).

11. Broaden S13 'Employee' & align S12 'Computer System' definitions

Field	Detail
Competitor(s) broader/better	Tysers (p9), Yutree (p88) employee defs; internal S15 cyber def
TMHCC current position	S13 'Employee' was narrow; S12 'Computer System' was narrower than S15.
Why this matters	Consistency and competitiveness of the protected classes/triggers.
Recommended action	Broaden S13 'Employee' (labour-only, hired/borrowed, voluntary/work-experience/secondee/student/prospective) and align S12 'Computer System' to S15.
Exact policy location	Section 13 (Definitions) and Section 12 (Definitions).
Automatic / optional / schedule	Automatic (definition)
Underwriting risk	Medium — widens protected class/triggers.
Claims risk	Low-medium.
Priority	Medium
Sign-off required	YES — confirm intended widening (S13 EL/legal-expenses class; S12 computer triggers).
Status	IMPLEMENTED as tracked change (A5/A6) — awaiting UW sign-off

Copy-paste-ready proposed wording: (See the Full Redline — S13 Employee definition and S12 Computer System definition, both shown as old→new tracked replacements.)

12. Personal Accident & Business Travel section

Field	Detail
Competitor(s) broader/better	Tysers (extensive); Yutree (PA assault)
TMHCC current position	No standalone PA / business-travel section.
Why this matters	Entertainment clients (crew, artists, touring personnel) routinely expect PA/business-travel; visible whole-section gap.
Recommended action	Add a new optional PA & Business Travel section — capacity-permitting; control via benefit schedule, age limits, hazardous-activity carve-outs.
Exact policy location	New optional Section (PA & Business Travel) within the 15-section structure.
Automatic / optional / schedule	Optional (new section)
Underwriting risk	Medium — PA/travel well-understood; control via benefit schedule.
Claims risk	Low-medium; defined benefits cap exposure.
Priority	High
Sign-off required	YES — confirm capacity/appetite; draft benefit schedule + assault definition.
Status	PARKED — proposed skeleton (not in current wording)

Copy-paste-ready proposed wording: Optional Personal Accident & Business Travel Section (operative only if stated in the Schedule): the Insurer will pay the benefits stated in the Benefit Schedule to or in respect of an Insured Person who sustains Bodily Injury caused by an Accident during the Period of Insurance (death; permanent total/partial disablement; temporary total disablement), together with business-travel cover (emergency medical, repatriation, cancellation, personal effects) where stated operative, subject to the age limits, hazardous-activity conditions and territorial limits stated in the

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Schedule. [Skeleton — to be drafted in full subject to capacity/appetite.]

13. Asbestos negligent-advice write-back (PI) — consider

Field	Detail
Competitor(s) broader/better	Tysers (asbestos professional-duty write-back, GBP 1m, ex-BI)
TMHCC current position	S12 excludes asbestos outright.
Why this matters	Negligent advice/specification touching asbestos is a genuine E&O exposure.
Recommended action	CONSIDER a narrow negligent-advice write-back (ex-BI, ex-contamination); otherwise leave excluded.
Exact policy location	Section 12 (Media Liability) — proviso to the Asbestos exclusion (if adopted).
Automatic / optional / schedule	Optional (if adopted)
Underwriting risk	Medium — ring-fence to negligent advice; exclude BI and clean-up.
Claims risk	Medium; cap tightly.
Priority	Medium
Sign-off required	YES — careful drafting; keep BI and contamination excluded.
Status	PARKED — for consideration

Copy-paste-ready proposed wording: [If adopted] provided that this Exclusion shall not apply to a claim arising solely from a negligent act, error or omission in the provision of the Insured's Media Business Services, and shall not extend to any claim for Bodily Injury or the costs of removing/remediating asbestos; sub-limit per Schedule.

14. Patents — LEAVE EXCLUDED (no action)

Field	Detail
Competitor(s) broader/better	Tysers (covers patents)
TMHCC current position	Excludes patents (as does Yutree).
Why this matters	Patents are hard to underwrite and high-severity; the exclusion is a deliberate, defensible restriction.
Recommended action	No change. At most a limited defence-costs write-back; otherwise leave excluded and explain as disciplined underwriting.
Exact policy location	Section 12 (Media Liability) — IP exclusion (no change).
Automatic / optional / schedule	n/a
Underwriting risk	Retaining the exclusion protects TMHCC.
Claims risk	Patents are high-severity.
Priority	Low
Sign-off required	No change — document rationale.
Status	NO ACTION — confirmed defensible restriction

Copy-paste-ready proposed wording: (No change recommended.)

15. ICOW / Book Debts naming + computer-breakdown signpost

Field	Detail
Competitor(s)	Allianz (names ICOW/Book Debts); Yutree (Computer Breakdown section)

Phase 05 — gap-fill strategy. Copy-paste wording is PROPOSED and subject to TMHCC legal/underwriting sign-off. 'Implemented as tracked change' = present in the Full Redline but NOT accepted.

broader/better	
TMHCC current position	BI (S3) covers ICOW/AICOW & book debts; IT/computer breakdown consolidated within S1/S2.
Why this matters	Presentational — competitors show more named heads; avoids perceived gaps.
Recommended action	'Accounts Receivable' re-labelled '(Book Debts)' (done). Confirm/signpost computer-breakdown within S1/S2.
Exact policy location	Section 3 (Definitions / Basis of Settlement) and Sections 1/2.
Automatic / optional / schedule	Automatic (labelling/clarification)
Underwriting risk	Low — clarification, not broadening.
Claims risk	Neutral.
Priority	Low-Medium
Sign-off required	Confirm S3 scope and S1/S2 breakdown; headings only.
Status	PARTLY DONE (Book Debts relabel) / clarify breakdown signpost
Copy-paste-ready proposed wording: (Relabel implemented; add an explicit 'computer/IT breakdown' signpost within S1/S2 if confirmed in scope.)	

Strategic note

The objective is to make TMHCC demonstrably broader and more holistic WHERE COMMERCIALY SENSIBLE — not to mirror competitors blindly. TMHCC already leads on section count and on four unique sections (Loss of Licence, Legal Expenses, Management Liability, standalone Cyber). The recommendations above close the genuine, wording-supported narrower points (abuse, jurisdiction, S12 extensions, PA). Patents and the default ex-US/Canada jurisdiction are retained deliberately. Every implemented item remains a tracked change pending underwriting/legal sign-off; parked items carry proposed wording for consideration.